

Northgate Talent Partners LLC

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February 25, 2016

Michael Martin
Chief Operating Officer
Coleman Ltd

Dear Mr. Martin:

Thank you for asking us to find your next vice president of engineering. The conversations that brought us here were good ones, and we come away with a clear sense of what the role has to carry at Coleman Ltd over the next few years. This letter sets down what we have agreed, so that the two of us work from the same understanding and not from memory.

Please read it against those conversations. If any part of it sits differently from what you understood, say so before you sign, and we will put it right.

The Assignment

Northgate will conduct a retained search for a vice president of engineering at Coleman Ltd, reporting to you. The search runs against a written position specification that we prepare with you and that you approve before we approach anyone. That document governs the assignment. If the market tells us something the specification did not anticipate, and on a role of this kind it usually does, we bring it back to you and amend the specification openly instead of quietly widening the brief.

The engagement is retained rather than contingent, and the distinction matters to how we will behave. What you are buying is a market covered properly and to a standard, including the part of it that turns out to hold nobody worth your time. We will not send you a resume to show activity.

How the Search Will Run

The work moves through five stages:

- 1. Specification. We meet the people this executive will work with most closely, and we write the specification for your approval.
- 2. Research. We map the companies and the roles where a person of this description is likely to sit today, and we build a target list off that map.

- 3. Approach and assessment. We contact the people on the list and interview the ones worth interviewing, in person wherever the calendar allows it.
- 4. Slate. We present a short list with a written appraisal of each candidate, and we manage your interview process from there.
- 5. References and close. We take references, help you shape the offer, and stay with the search until your candidate has accepted and given notice.

In practice the stages overlap, and research continues while the first approaches are underway. You will hear from us on a regular cycle, and each report will tell you how many people we have approached, how many are in live conversation, and where the market is pushing back. Where it pushes back on something in the specification, we will say so early, while there is still time to do something about it.

Your Team

Jeffrey Patterson will carry the search day to day and is the person to call about anything of substance. He came up through our research side, and it shows in his habits: he will not put a name in front of you until he can say precisely why it belongs there.

James Grant, a senior consultant here, works the assignment alongside him and will sit in on your interviews. John Chang handles the research behind the target list, the scheduling, and the written record of our sessions with you. I read everything that goes out to you under our name, and you are welcome to come to me directly at any point in the search.

Fees and Payment

Our fee for the assignment is \$105,000. It is fixed at the outset and is not calculated from the compensation you eventually agree with your candidate, which keeps our advice on that compensation disinterested. We will invoice the fee in three equal installments: the first on commencement, the second when we present the slate, and the third when your candidate accepts. Invoices are payable within thirty days of receipt.

Expenses sit outside the fee and are billed at cost. They are candidate and consultant travel, and any research we commission from outside the firm. We will agree anything material with you before we incur it, and the detail appears on the invoice.

Term and Termination

The engagement begins March 6, 2016 and we expect it to run about seven months from that date through to a signed acceptance. Either of us may end it on thirty days'

written notice. If you end it, you owe us the installments already due and the expenses already committed on your behalf, and nothing beyond that.

If the executive we place leaves within twelve months, for any reason other than a change you make to the role or the terms of it, we will conduct one replacement search for expenses only.

Confidentiality

Everything we learn about Coleman Ltd in the course of the work we hold in confidence and use only for this search. We ask the same of you for what we tell you about candidates, and here we will press the point. Most of the people we approach are content where they are and take a real risk in talking to us. Their names stay inside the interview process, they do not appear in anything that circulates, and we will not confirm to anyone outside it that a particular person is in conversation with you.

For the term of the engagement and for one year after it closes, we will not approach the executive we place, or any member of your leadership team, for another client.

Limitation of Liability

We will do this work with the care and skill you are entitled to expect. We verify what a candidate tells us about their record, and we will tell you plainly what we could not verify. The hiring decision is yours, and we give no warranty as to how anyone you employ will perform in the role. Our liability under this agreement is limited to the fees paid under it, except where the law does not permit that limit.

Governing Law

This agreement is governed by the law of the state in which our office is established, and any dispute arising under it belongs in that state's courts. If any provision of the letter is found unenforceable, the remainder stands.

If this reflects our understanding, please sign both copies and return one to me. The next step after that is a short one: Jeffrey Patterson will call your office to fix the specification meetings for the first week of the engagement, and we would like the two people this role will work with most closely in the room for one of them.

Kelly Chavez

Managing Director

Date: February 25, 2016

Michael Martin

Chief Operating Officer, Coleman Ltd

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